

26STCV03614 26STCV03614

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-09-18

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Case Number: 26STCV03614 Hearing Date: September 18, 2026 Dept: 406

KIMBERLINA WHETTAM & ASSOCIATES,
INC.,

Plaintiff,

v.

HOOMAN NISSANI, et al.,

Defendants.

Case No.: 26STCV03014

Hearing Date: September 18, 2026

[TENTATIVE]

order RE:

plaintiff's motion to stay

BACKGROUND

On January 29, 2026, Plaintiff

Kimberlina Whettam & Associates, Inc. filed this action against Defendants

Hooman Nissani, HSK Properties, LLC, and HMN Corp for recovery of unpaid
compensation under a retainer agreement.

The matter is currently in

arbitration. Plaintiff allegedly filed this action to toll the statute of limitations and to provide a forum for enforcing an arbitration award.

On March 24, 2026, Plaintiff filed the instant motion to stay the matter pending arbitration. No opposition has been filed.

LEGAL STANDARD

A trial court has statutory authority to control the proceedings before it in the interests of justice. (Code Civ. Proc., § 128(a).) Additionally, “[c]ourts have inherent authority to control their own calendars and dockets” (Walker v. Superior Court (1991) 53 Cal.3d 257, 267.) This includes “the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

DISCUSSION

Here, the requested relief has no basis in law because this action was not necessary for Plaintiff to toll the statute of limitations or obtain a judgment on the arbitration award. Plaintiff may file a petition to confirm an arbitration award without filing an independent complaint. For these reasons, the Court finds that a stay is not warranted.

CONCLUSION

Plaintiff’s motion to stay is DENIED.